

25STLC05253 25STLC05253

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-30

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Case Number: 25STLC05253 Hearing Date: July 30, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff International Fidelity Insurance Company's Motion for Summary Judgment is granted as to Defendant Dallas Hijazeen.

Order to Show Cause Re: Entry of Default and Default Judgment Against Defendant Planet Cars Inc. dba Cash Or Finance Auto is scheduled for 010/08/2026 at 9:30 am in Department 26 at the Spring Street Courthouse. Plaintiff to give notice to both Defendants and file proof of notice within five days. Plaintiff may seek to have Defendant Planet Car's default entered no sooner 30 days after giving notice.

Analysis:

On July 9, 2025, Plaintiff International Fidelity Insurance Company ("Plaintiff") filed the instant action for breach of contract against Defendants Planet Cars Inc. dba Cash Or Finance Auto ("Defendant Planet Cars") and Dallas Hijazeen ("Defendant Hijazeen") (together, "Defendants"). On September 22, 2025, an Answer was filed to the Complaint by Defendant Hijazeen, purporting to be filed on behalf of "Defendants Planet Cars Inc. dba Cash Or Finance Auto." (Answer, filed 09/22/25, p. 1.) Only Defendant Hijazeen has paid a first appearance fee.

On April 23, 2026, Plaintiff filed the instant Motion for Summary Judgment, seeking judgment in its favor as to both Defendants, which it served on Defendant Hijazeen by first-class and electronic mail on the same day. Defendant Hijazeen is also Defendant Planet Car's agent for service of process, but the proof of service does not list Defendant Hijazeen in that separate capacity. No opposition has been filed to date.

Discussion

Plaintiff moves for summary judgment on the Complaint pursuant to Code of Civil Procedure section 437c. On a motion for summary judgment or adjudication of a particular cause of action, a moving plaintiff must show that there is no defense by proving each element of the cause of action entitling the party to judgment on that cause of action. (Code Civ. Proc., § 437c, subd. (p)(1).) Then the burden shifts to the defendant to show that a triable issue of one or more material facts exists as to that cause of action or a defense. (Code Civ. Proc., § 437c, subd. (p)(1).) Additionally, in ruling on the Motion, the Court must view the "evidence [citations] and such inferences [citations], in the light most favorable to the opposing party." (Intrieri v. Superior Court (2004) 117 Cal.App.4th 72, 81 [citing Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843].)

Allegations in the Complaint

The Complaint alleges a single cause of action for breach of indemnity agreement based on the following facts. The parties entered into an indemnity agreement on or about September 3, 2015, pursuant to which Plaintiff issued a Motor Vehicle Dealer License Bond in the amount of \$50,000.00. (Compl., Attachment BC-2 and Exh. B.) After Plaintiff issued the Bond, it received claims and civil actions from consumers who purchased vehicles from Defendants. (Id. at Attachment BC-2.) Plaintiff demanded that Defendants defend the claims and hold Plaintiff harmless, but Defendants refused. (Ibid.) Defendants thereby breached the agreement on or about February 14, 2023. (Compl., ¶¶BC-1, BC-2.) Plaintiff was forced to retain counsel and defend the claims and civil actions, which it later settled in good faith. (Id. at Attachment BC-2.) Plaintiff paid \$20,200.00 to the claimants and to counsel for fees to defend the civil actions. (Ibid.) Plaintiff made demand on Defendants for indemnification, but they failed to indemnify Plaintiff. (Ibid.) As a result, Plaintiff has been damaged in the amount of \$21,206.50, plus interest according to proof. (Id. at ¶BC-4.)

Cause of Action for Breach of Equipment Finance Agreement

The elements of a cause of action for breach of contract are (1) the existence of contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach (or anticipatory breach); and (4) resulting damage. (Wall Street Network, Ltd. v. N. Y. Times Co. (2008) 164 Cal.App.4th 1171, 1178.)

In support of the motion, Plaintiff presents the following facts as undisputed. On September 3, 2015, Defendants executed a personal indemnity agreement in favor of Plaintiff to obtain a \$50,000 motor vehicle dealer license bond ("the Bond"). The indemnity agreement required Defendants to indemnify and hold Plaintiff harmless against any claim brought against Plaintiff by an alleged victim of misconduct committed by Defendants. (Motion, Separate Statement, Fact No. 1; Sordillo Decl., ¶¶2-3 and Exh. 1 at ¶2.) The indemnity agreement covers all losses incurred by Plaintiff. (Motion, Separate Statement, Fact No. 1; Sordillo Decl., ¶¶2-3 and Exh. 1 at ¶2.) When two civil actions were filed against Plaintiff under the Bond, Plaintiff gave notice to Defendants and demanded to be held harmless. (Motion, Separate Statement, Fact No. 2; Sordillo Decl., ¶¶5-6 and Exhs. 3-4.) Defendants did not hold Plaintiff harmless or indemnify Plaintiff. (Motion, Separate Statement, Fact No. 3; Sordillo Decl., ¶7.) On counsel's advice, Plaintiff settled the civil actions for \$10,000.00 and \$6,500.00, respectively. (Motion, Separate Statement, Fact No. 4; Sordillo Decl., ¶8 and Exh. 5.) Plaintiff incurred legal expenses of \$4,706.50 to defend the civil actions. (Motion, Separate Statement, Fact No. 1; Sordillo Decl., ¶¶9-10 and Exh. 5.) Defendants refused to indemnify Plaintiff after demand was sent; Plaintiff has incurred damages of \$21,206.50, plus interest at ten percent per annum from February 14, 2023 until entry of judgment. (Motion, Separate Statement, Fact No. 6; Sordillo Decl., ¶11.)

This evidence carries Plaintiff's initial burden of proof with respect to the cause of action for breach of contract. The burden now shifts to Defendants to demonstrate the existence of a triable issue of material fact. However, no opposition has been filed to date.

The Court grants the motion as to Defendant Hijazeen only. A motion for summary judgment may be filed no sooner than 60 days after a party's appearance in the action. (Code Civ. Proc., 437c(a)(1).) Defendant Planet Cars has not yet made a first appearance in this action so any motion for summary judgment is premature. The Answer filed on 9/22/2025 purports to be filed on its behalf, however it was filed and signed only by Defendant Hijazeen in pro per, and corporations must appear through counsel. (CLD Constr., Inc. v. City of San Ramon (2004) 120 Cal. App. 4th 1141, 1145 (A corporation "must be represented by licensed counsel in proceedings before courts of record").) Further Defendant Planet Cars has not paid an appearance fee, and therefore cannot file documents in this case. (See Government Code, § 70612; Hu v. Silgan Containers Corp. (1999) 70 Cal. App. 4th 1261, 1268 ("A clerk may properly refuse to file a document until the filing fee is paid, and the document is not deemed filed until payment.")) The Answer is not effective as to Defendant Planet Cars for that additional reason. These defects are curable, however they have not been cured to date.

In light of Defendant Planet Cars' failure to Answer or otherwise respond to the Complaint following service, the Court sets an Order to Show Cause re Entry of Default and Default Judgment on the date indicated below. Plaintiff must give notice of this order to both Defendants. Plaintiff may seek to have Defendant Planet Car's default entered no sooner 30 days after giving notice.

Conclusion

Plaintiff International Fidelity Insurance Company's Motion for Summary Judgment is granted as to Defendant Dallas Hijazeen.

Order to Show Cause Re: Entry of Default and Default Judgment Against Defendant Planet Cars Inc. dba Cash Or Finance Auto is scheduled for 010/08/2026 at 9:30 am in Department 26 at the Spring Street Courthouse. Plaintiff to give notice to both Defendants and file proof of notice within five days. Plaintiff may seek to have Defendant Planet Car's default entered no sooner 30 days after giving notice.

Moving Party to give notice.